

Multiple Choice (10 marks)

1. In which of the following situations does the best evidence rule generally not apply?
 - (a) Collateral matters
 - (b) Public records
 - (c) When it's not offered to prove the contents of the document
 - (d) All of the above.
2. A criminal actor committed the crime of solicitation. Which of the following does not apply to solicitation?
 - (a) It is an agreement between two or more to commit a crime.
 - (b) It is solicitation of another to commit a felony.
 - (c) No act is needed other than the solicitation.
 - (d) Withdrawal is generally not a defense.
3. In which of the following stages does an indigent person not have the Sixth Amendment right to counsel?
 - (a) Preliminary Hearing
 - (b) Arraignment
 - (c) investigative surveillance
 - (d) Post-charge lineups
4. A man is charged with murder. During the trial, defense counsel offers the testimony of a man on death row admitting he hired another man to shoot the victim. The testimony is
 - (a) not hearsay.
 - (b) hearsay, but admissible as an admission.
 - (c) hearsay, but admissible as a dying declaration.
 - (d) hearsay not within any recognized exception.
5. Which of the following is not an element of common law burglary?
 - (a) A breaking and entry
 - (b) Of a dwelling, of another
 - (c) During the daytime
 - (d) With the intent to commit a felony therein.

True / False (10 marks)

Answer True or False

6. True or False: Cold pursuit is not recognized as a valid exception to the warrant requirement for searches under constitutional law.
7. True or False: The Doctrine of Worthier Title states that a remainder in a grantor's heirs is invalid and creates a reversion to the grantor.
8. True or False: The President can unilaterally appoint justices of the Supreme Court without the need for Senate consent.
9. True or False: The enabling clause of the Fourteenth Amendment primarily allows states to regulate private individuals' actions based on nationality.
10. True or False: Slander per se requires that the statement be published to any third party for a claim to be actionable.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the role of the necessary and proper power in the context of federal law, analyzing why it cannot stand alone to support federal authority.
12. Discuss the implications of denying certain fundamental rights to specific individuals while granting them to others, focusing on the concept of equal protection under the law.

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